

Ross and Cromarty ;
Sutherland ;
Orkney ; and
Zetland.

The Highland District of the County of Perth as presently
constituted in terms of the Local Government (Scotland) Act,
1889.

CHAPTER 27.

An Act to consolidate, simplify, and amend the Law
relating to Forgery and kindred Offences.

[15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and
with the advice of the Lords Spiritual and Temporal, and
Commons, in this present Parliament assembled, and by the
authority of the same, as follows :

Definition of
forgery.

1.—(1) For the purposes of this Act, forgery is the making
of a false document in order that it may be used as genuine,
and in the case of the seals and dies mentioned in this Act
the counterfeiting of a seal or die, and forgery with intent to
defraud or deceive, as the case may be, is punishable as in this
Act provided.

(2) A document is false within the meaning of this Act if
the whole or any material part thereof purports to be made by
or on behalf or on account of a person who did not make it nor
authorise its making ; or if, though made by or on behalf or on
account of the person by whom or by whose authority it purports
to have been made, the time or place of making, where either
is material, or, in the case of a document identified by number or
mark, the number or any distinguishing mark identifying the
document, is falsely stated therein ; and in particular a document
is false :—

- (a) if any material alteration, whether by addition, insertion,
obliteration, erasure, removal, or otherwise, has been
made therein ;
- (b) if the whole or some material part of it purports to be
made by or on behalf of a fictitious or deceased
person ;
- (c) if, though made in the name of an existing person, it is
made by him or by his authority with the intention
that it should pass as having been made by some
person, real or fictitious, other than the person who
made or authorised it.

(3) For the purposes of this Act—

- (a) it is immaterial in what language a document is ex-
pressed or in what place within or without the
King's dominions it is expressed to take effect ;

- (b) Forgery of a document may be complete even if the document when forged is incomplete, or is not or does not purport to be such a document as would be binding or sufficient in law ;
- (c) The crossing on any cheque, draft on a banker, post-office money order, postal order, coupon, or other document the crossing of which is authorised or recognised by law, shall be a material part of such cheque, draft, order, coupon, or document.

2.—(1) Forgery of the following documents, if committed with intent to defraud, shall be felony and punishable with penal servitude for life :—

Forgery of certain documents with intent to defraud.

- (a) Any will, codicil, or other testamentary document, either of a dead or of a living person, or any probate or letters of administration, whether with or without the will annexed ;
- (b) Any deed or bond, or any assignment at law or in equity of any deed or bond, or any attestation of the execution of any deed or bond ;
- (c) Any bank note, or any indorsement on or assignment of any bank note.

(2) Forgery of the following documents, if committed with intent to defraud, shall be felony and punishable with penal servitude for any term not exceeding fourteen years :—

- (a) Any valuable security or assignment thereof or endorsement thereon, or, where the valuable security is a bill of exchange, any acceptance thereof ;
- (b) Any document of title to lands or any assignment thereof or endorsement thereon ;
- (c) Any document of title to goods or any assignment thereof or endorsement thereon ;
- (d) Any power of attorney or other authority to transfer any share or interest in any stock, annuity, or public fund of the United Kingdom or any part of His Majesty's dominions or of any foreign state or country or to transfer any share or interest in the debt of any public body, company, or society, British or foreign, or in the capital stock of any such company or society, or to receive any dividend or money payable in respect of such share or interest or any attestation of any such power of attorney or other authority ;
- (e) Any entry in any book or register which is evidence of the title of any person to any share or interest hereinbefore mentioned or to any dividend or interest payable in respect thereof ;
- (f) Any policy of insurance or any assignment thereof or endorsement thereon ;
- (g) Any charter-party or any assignment thereof ;

10 Geo. 4. c. 24.
2 & 3 Will. 4.
c. 59.

- (h) Any declaration, warrant, order, affidavit, affirmation, certificate, or other document required or authorised to be made by or for the purposes of the Government Annuities Act, 1829, or the Government Annuities Act, 1832, or by the National Debt Commissioners acting under the authority of the said Acts ;
- (i) Any certificate of the Commissioners of Inland Revenue or any other Commissioners acting in execution of the Income Tax Acts ;
- (j) Any certificate, certificate of valuation, sentence or decree of condemnation or restitution, or any copy of such sentence or decree, or any receipt required by the Slave Trade Acts.

Forgery of
certain docu-
ments with
intent to
defraud or
deceive.

3.—(1) Forgery of the following documents, if committed with intent to defraud or deceive, shall be felony, and punishable with penal servitude for life :—

Any document whatsoever having thereupon or affixed thereto the stamp or impression of the Great Seal of the United Kingdom, His Majesty's Privy Seal, any privy signet of His Majesty, His Majesty's Royal Sign Manual, any of His Majesty's seals appointed by the Twenty-fourth Article of the Union between England and Scotland to be kept, used, and continued in Scotland, the Great Seal of Ireland or the Privy Seal of Ireland.

(2) Forgery of the following documents, if committed with intent to defraud or deceive, shall be felony, and punishable with penal servitude for any term not exceeding fourteen years :—

- (a) Any register or record of births, baptisms, namings, dedications, marriages, deaths, burials, or cremations, which now is, or hereafter may be, by law authorised or required to be kept in the United Kingdom, relating to any birth, baptism, naming, dedication, marriage, death, burial, or cremation, or any part of any such register, or any certified copy of any such register, or of any part thereof ;
- (b) Any copy of any register of baptisms, marriages, burials, or cremations, directed or required by law to be transmitted to any registrar or other officer ;
- (c) Any register of the birth, baptism, death, burial, or cremation of any person to be appointed a nominee under the provisions of the Government Annuities Act, 1829, or any copy or certificate of any such register, or the name of any witness to any such certificate ;
- (d) Any certified copy of a record purporting to be signed by an assistant keeper of the Public Records in England ;
- (e) Any wrapper or label provided by or under the authority of the Commissioners of Inland Revenue or the Commissioners of Customs and Excise.

(3) Forgery of the following documents, if committed with intent to defraud or deceive, shall be felony, and punishable with penal servitude for any term not exceeding seven years :—

- (a) Any official document whatsoever of or belonging to any court of justice, or made or issued by any judge, magistrate, officer, or clerk of any such court ;
- (b) Any register or book kept under the provisions of any law in or under the authority of any court of justice ;
- (c) Any certificate, office copy, or certified copy of any such document, register, or book or of any part thereof ;
- (d) Any document which any magistrate or any master or registrar in lunacy is authorised or required by law to make or issue ;
- (e) Any document which any person authorised to administer an oath under the Commissioners for Oaths Act, 1889, 52 Vict. c. 10. is authorised or required by law to make or issue ;
- (f) Any document made or issued by an officer of state or law officer of the Crown, or any document upon which, by the law or usage at the time in force, any court of justice or any officer might act ;
- (g) Any document or copy of a document used or intended to be used in evidence in any Court of Record, or any document which is made evidence by law ;
- (h) Any certificate required by any Act for the celebration of marriage ;
- (i) Any licence for the celebration of marriage which may be given by law ;
- (j) Any certificate, declaration, or order under any enactment relating to the registration of births or deaths ;
- (k) Any register book, builder's certificate, surveyor's certificate, certificate of registry, declaration, bill of sale, instrument of mortgage, or certificate of mortgage or sale under Part I. of the Merchant Shipping Act, 1894, or any entry or endorsement required by the said Part of the said Act to be made in or on any of those documents ; 57 & 58 Vict. c. 60.
- (l) Any permit, certificate, or similar document made or granted by or under the authority of the Commissioners of Customs and Excise.

4.—(1) Forgery of any document, which is not made felony under this or any other statute for the time being in force, if committed with intent to defraud, shall be a misdemeanour and punishable with imprisonment with or without hard labour for any term not exceeding two years.

Forgery of other documents with intent to defraud or to deceive a misdemeanour.

(2) Forgery of any public document which is not made felony under this or any other statute for the time being in

force, if committed with intent to defraud or deceive, shall be a misdemeanour and punishable with imprisonment with or without hard labour for any term not exceeding two years.

Forgery of
seals and dies.

5.—(1) Forgery of the following seals, if committed with intent to defraud or deceive, shall be felony and punishable with penal servitude for life:—

- (a) The Great Seal of the United Kingdom, His Majesty's Privy Seal, any privy signet of His Majesty, His Majesty's Royal Sign Manual, any of His Majesty's seals appointed by the Twenty-fourth Article of the Union between England and Scotland to be kept, used, and continued in Scotland, the Great Seal of Ireland or the Privy Seal of Ireland;
- (b) The seal of the Public Record Office in England;
- (c) The seal of any court of record;
- (d) The seal of the office of the Registrar-General of Births, Deaths, and Marriages.

(2) Forgery of the following seals, if committed with intent to defraud or deceive, shall be felony, and punishable with penal servitude for any term not exceeding fourteen years:—

- (a) The seal of any register office relating to births, baptisms, marriages, or deaths;
- (b) The seal of any burial board or of any local authority performing the duties of a burial board;
- (c) The seal of or belonging to any office for the registry of deeds or titles to lands.

(3) Forgery of the following seals, if committed with intent to defraud or deceive, shall be felony and punishable with penal servitude for any term not exceeding seven years:—

- (a) The seal of any court of justice other than a court of record;
- (b) The seal of the office of any master or registrar in lunacy.

(4) Forgery of the following dies, if committed with intent to defraud or deceive, shall be felony and punishable with penal servitude for any term not exceeding fourteen years:—

- (a) Any die provided, made, or used by the Commissioners of Inland Revenue or the Commissioners of Customs and Excise;
- (b) Any die which is or has been required or authorised by law to be used for the marking or stamping of gold or silver plate, or gold or silver wares.

(5) Forgery of the following die, if committed with intent to defraud or deceive, shall be felony and punishable with penal servitude for any term not exceeding seven years:—

Any stamp or die provided, made, or used in pursuance of the Local Stamp Act, 1869.

32 & 33 Vict.
c. 49.

Uttering.

6.—(1) Every person who utters any forged document, seal, or die shall be guilty of an offence of the like degree (whether

felony or misdemeanour) and on conviction thereof shall be liable to the same punishment as if he himself had forged the document, seal, or die.

(2) A person utters a forged document, seal, or die, who, knowing the same to be forged, and with either of the intents necessary to constitute the offence of forging the said document, seal, or die, uses, offers, publishes, delivers, disposes of, tenders in payment or in exchange, exposes for sale or exchange, exchanges, tenders in evidence, or puts off the said forged document, seal, or die.

(3) It is immaterial where the document, seal, or die was forged.

7. Every person shall be guilty of felony and on conviction thereof shall be liable to penal servitude for any term not exceeding fourteen years, who, with intent to defraud, demands, receives, or obtains, or causes or procures to be delivered, paid or transferred to any person, or endeavours to receive or obtain or to cause or procure to be delivered, paid or transferred to any person any money, security for money or other property, real or personal :—

Demanding property on forged documents, &c.

- (a) under, upon, or by virtue of any forged instrument whatsoever, knowing the same to be forged ; or
- (b) under, upon, or by virtue of any probate or letters of administration, knowing the will, testament, codicil, or testamentary writing on which such probate or letters of administration shall have been obtained to have been forged, or knowing such probate or letters of administration to have been obtained by any false oath, affirmation, or affidavit.

8.—(1) Every person shall be guilty of felony and on conviction thereof shall be liable to penal servitude for any term not exceeding fourteen years, who, without lawful authority or excuse, the proof whereof shall lie on the accused, purchases or receives from any person, or has in his custody or possession, a forged bank note, knowing the same to be forged.

Possession of forged documents, seals, and dies.

(2) Every person shall be guilty of felony and on conviction thereof shall be liable to penal servitude for any term not exceeding fourteen years, who, without lawful authority or excuse, the proof whereof shall lie on the accused, and knowing the same to be forged, has in his custody or possession—

- (a) any forged die required or authorised by law to be used for the marking of gold or silver plate, or of gold or silver wares, or any ware of gold, silver, or base metal bearing the impression of any such forged die ;
- (b) any forged stamp or die as defined by the Stamp Duties Management Act, 1891 ;
- (c) any forged wrapper or label provided by or under the authority of the Commissioners of Inland Revenue or the Commissioners of Customs and Excise.

54 & 55 Vict. c. 38.

(3) Every person shall be guilty of felony and on conviction thereof shall be liable to penal servitude for any term not exceeding seven years, who, without lawful authority or excuse, the proof whereof shall lie on the accused, and knowing the same to be forged, has in his custody or possession :—

Any forged stamp or die, resembling or intended to resemble either wholly or in part any stamp or die which at any time whatever has been or may be provided, made, or used by or under the direction of the local authority for the purposes of the Local Stamp Act, 1869.

Making or having in possession paper or implements for forgery.

9. Every person shall be guilty of felony and on conviction thereof shall be liable to penal servitude for any term not exceeding seven years, who, without lawful authority or excuse, the proof whereof shall lie on the accused :—

(a) Makes, uses, or knowingly has in his custody or possession any paper intended to resemble and pass as—

(i) Special paper such as is provided and used for making any bank note, Treasury bill, or London county bill ;

(ii) Revenue paper ;

(b) Makes, uses, or knowingly has in his custody or possession, any frame, mould, or instrument for making such paper, or for producing in or on such paper any words, figures, letters, marks, lines, or devices peculiar to and used in or on any such paper ;

(c) Engraves or in anywise makes upon any plate, wood, stone, or other material, any words, figures, letters, marks, lines, or devices, the print whereof resembles in whole or in part any words, figures, letters, marks, lines, or devices peculiar to and used in or on any bank note, or in or on any document entitling or evidencing the title of any person to any share or interest in any public stock, annuity, fund, or debt of any part of His Majesty's Dominions or of any foreign state, or in any stock, annuity, fund, or debt of any body corporate, company, or society, whether within or without His Majesty's dominions ;

(d) Uses or knowingly has in his custody or possession any plate, wood, stone, or other material, upon which any such words, figures, letters, marks, lines, or devices have been engraved or in anywise made as aforesaid ;

(e) Uses or knowingly has in his custody or possession any paper upon which any such words, figures, letters, marks, lines, or devices have been printed or in anywise made as aforesaid.

Purchasing or having in possession certain paper before it has been duly stamped and issued.

10. Every person shall be guilty of a misdemeanour and on conviction thereof shall be liable to imprisonment, with or without hard labour, for any term not exceeding two years, who, without lawful authority or excuse the proof whereof shall lie

on the accused, purchases, receives, or knowingly has in his custody or possession—

- (a) Any special paper provided and used for making Treasury bills or London county bills or any Revenue paper before such paper has been duly stamped, signed, and issued for public use :
- (b) Any die peculiarly used in the manufacture of any such paper.

11. Any person who knowingly and wilfully aids, abets, counsels, causes, procures, or commands the commission of an offence punishable under this Act shall be liable to be dealt with, indicted, tried, and punished as a principal offender. Accessories and abettors.

12.—(1) Where a sentence of penal servitude may be imposed on conviction of an offence against this Act, the court may, instead thereof, impose a sentence of imprisonment, with or without hard labour, for not more than two years. Punishments.

(2)—(a) On conviction of a misdemeanour punishable under this Act, the court, instead of or in addition to any other punishment which may be lawfully imposed, may fine the offender :

(b) On conviction of a felony punishable under this Act, the court, in addition to imposing a sentence of penal servitude or imprisonment, may require the offender to enter into his own recognizances, with or without sureties, for keeping the peace and being of good behaviour :

(c) On conviction of a misdemeanour punishable under this Act, the court, instead of or in addition to any other punishment which may lawfully be imposed for the offence, may require the offender to enter into his own recognizances, with or without sureties, for keeping the peace and being of good behaviour :

(d) No person shall be imprisoned under this section for more than one year for not finding sureties.

13. A court of quarter sessions in England shall not have jurisdiction to try an indictment for any offence against this Act or for an offence which, under any enactment for the time being in force, is declared to be forgery or to be punishable as forgery. Jurisdiction of quarter sessions in England.

14.—(1) A person charged—

Venue.

- (a) with an offence against this Act; or
- (b) with an offence indictable at common law or under any Act for the time being in force consisting in the forging or altering of any matter whatsoever, or in offering, uttering, disposing of, or putting off any matter whatsoever, knowing the same to be forged or altered ;

may be proceeded against, indicted, tried, and punished in any county or place in which he was apprehended or is in custody as if the offence had been committed in that county or place ;

and for all purposes incidental to or consequential on the prosecution, trial, or punishment of the offence, it shall be deemed to have been committed in that county or place:

36 & 37 Vict.
c. 88.

Provided that, where the offence charged relates to documents made for the purpose of any Act relating to the suppression of the slave trade, it shall, for the purposes of jurisdiction and trial, be treated as an offence against the Slave Trade Act, 1873.

(2) Nothing in this section shall affect the laws relating to the government of His Majesty's naval or military forces.

Criminal pos-
session.

15. Where the having any document, seal, or die in the custody or possession of any person is in this Act expressed to be an offence, a person shall be deemed to have a document, seal or die in his custody or possession if he—

- (a) has it in his personal custody or possession; or
- (b) knowingly and wilfully has it in the actual custody or possession of any other person, or in any building, lodging, apartment, field, or other place, whether open or enclosed, and whether occupied by himself or not.

It is immaterial whether the document, matter, or thing is had in such custody, possession, or place for the use of such person or for the use or benefit of another person.

Search war-
rants.

16.—(1) If it shall be made to appear by information on oath before a justice of the peace that there is reasonable cause to believe that any person has in his custody or possession without lawful authority or excuse—

- (a) any bank note; or
- (b) any implement for making paper or imitation of the paper used for bank notes; or
- (c) any material having thereon any words, forms, devices, or characters capable of producing or intended to produce the impression of a bank note; or
- (d) any forged document, seal, or die; or
- (e) any machinery, implement, utensil, or material used or intended to be used for the forgery of any document;

the justice may grant a warrant to search for the same; and if the same shall be found on search, it shall be lawful to seize it and carry it before a justice of the county or place in which the warrant was issued, to be by him disposed of according to law.

(2) Every document, seal, or die lawfully seized under such warrant shall be defaced and destroyed or otherwise disposed of—

- (a) by order of the court before which the offender is tried; or
- (b) if there be no trial, by order of a justice of the peace; or

- (c) if it affects the public revenue, by the Commissioners of Inland Revenue or the Commissioners of Customs and Excise, as the case may require ; or
- (d) if it affects any of the companies of Goldsmiths or Guardians referred to in the Gold and Silver Wares Act, 1844, by the said company or guardians.

7 & 8 Vict.
c. 22.

17.—(1) In an indictment or information for an offence against this Act with reference to any document, seal, or die, it is sufficient to refer to the document, seal, or die by any name or designation by which it is usually known, or by its purport, without setting out any copy or facsimile of the whole or any part of the document, seal, or die.

Form of in-
dictment and
proof of in-
tent.

(2) Where an intent to defraud or an intent to deceive is one of the constituent elements of an offence punishable under this Act, or under any other Act relating to forgery or any kindred offence for the time being in force, it shall not be necessary to allege in the indictment or to prove an intent to defraud or deceive any particular person ; and it shall be sufficient to prove that the defendant did the act charged with intent to defraud or to deceive, as the case may require.

(3) If any person who is a member of any co-partnership, or is one of two or more beneficial owners of any property, forges any document, matter, or thing with intent to defraud the co-partnership or the other beneficial owners, he is liable to be dealt with, indicted, tried, and punished as if he had not been or was not a member of the co-partnership, nor one of such beneficial owners.

18.—(1) In this Act unless the context otherwise requires— Interpretation.

The expression “bank note” includes any note or bill of exchange of the Bank of England or Bank of Ireland, or of any other person, body corporate, or company carrying on the business of banking in any part of the world, and includes “bank bill,” “bank post bill,” “blank bank note,” “blank bank bill of exchange,” and “blank bank post bill” :

The expression “die” includes any plate, type, tool, or implement whatsoever, and also any part of any die plate, type, tool, or implement, and any stamp or impression thereof or any part of such stamp or impression :

The expression “document of title to goods” includes any bill of lading, India warrant, dock warrant, warehouse keepers certificate, warrant or order for the delivery or transfer of any goods or valuable thing, bought or sold note, or any other document used in the ordinary course of business as proof of the possession or control of goods, or authorising or purporting to authorise either by endorsement or by delivery the possessor of such document to transfer or receive any goods thereby represented or therein mentioned or referred to :

The expression "document of title to lands" includes any deed, map, roll, register, or instrument in writing being or containing evidence of the title or any part of the title to any land or to any interest in or arising out of any land, or any authenticated copy thereof:

The expression "revenue paper" means any paper provided by the proper authority for the purpose of being used for stamps, licences, permits, Post Office money orders, or postal orders, or for any purpose whatever connected with the public revenue:

The expression "seal" includes any stamp or impression of a seal or any stamp or impression made or apparently intended to resemble the stamp or impression of a seal, as well as the seal itself:

The expression "stamp" includes a stamp impressed by means of a die as well as an adhesive stamp:

The expression "Treasury bill," includes Exchequer bill, Exchequer bond, Exchequer debenture, and War bond:

The expression "valuable security" includes any writing entitling or evidencing the title of any person to any share or interest in any public stock, annuity, fund, or debt of any part of His Majesty's dominions or of any foreign state, or in any stock, annuity, fund, or debt of any body corporate, company, or society, whether within or without His Majesty's dominions, or to any deposit in any bank, and also includes any scrip, debenture, bill, note, warrant, order, or other security for the payment of money, or any accountable receipt, release, or discharge, or any receipt or other instrument evidencing the payment of money, or the delivery of any chattel personal.

(2) References in this Act to any Act in force at the commencement of this Act shall be held to include a reference to that Act as amended, extended, or applied by any other Act.

(3) References in this Act to any Government department shall in relation to any functions performed by that department be held to include references to any other Government department by which the same functions were previously performed.

Savings.

19.—(1) Where an offence against this Act also by virtue of some other Act subjects the offender to any forfeiture or disqualification, or to any penalty other than penal servitude or imprisonment or fine, the liability of the offender to punishment under this Act shall be in addition to and not in substitution for his liability under such other Act.

(2) Where an offence against this Act is by any other Act, whether passed before or after the commencement of this Act, made punishable on summary conviction, proceedings may be taken either under such other Act or under this Act: Provided that where such an offence was at the commencement of this Act punishable only on summary conviction, it shall remain only so punishable.

20. The enactments specified in the schedule to this Act ^{Repeals.} are hereby repealed as to England and Ireland to the extent specified in the third column of that schedule.

21. This Act shall not extend to Scotland.

^{Extent.}

22. This Act may be cited as the Forgery Act, 1913, and shall come into operation on the first day of January one thousand nine hundred and fourteen.

<sup>Short title and
commence-
ment.</sup>

SCHEDULE.

ENACTMENTS REPEALED.

PART I.

ENACTMENTS APPLICABLE TO ENGLAND AND ALSO IN SOME CASES TO IRELAND.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
13 Geo. 3. c. 52.	The Plate Assay (Sheffield and Birmingham) Act, 1772.	Section fourteen from "shall cast, forge, or counterfeit" to "maker or worker of silver plate, or any or either of them; or," where those words thirdly occur; the words "any such forged or counterfeit mark, stamp, or impression thereon, or"; the words "forged, counterfeited, or," and from "or shall wilfully or knowingly have or be possessed of" to "maker or worker of silver plate, or any or either of them;" where those words lastly occur.
52 Geo. 3. c. 143.	The Land Tax Certificates Forgery Act, 1812.	The whole Act so far as unrepealed.
5 Geo. 4. c. lii.	The Birmingham Assay Act, 1824.	Section twenty-two from "shall cast, forge, or counterfeit" to "maker or worker of gold or silver plate, or any or either of them, or," where those words secondly occur; the words "any such forged or counterfeited mark, stamp, or impression thereon, or," the words "forged or counterfeited or," and from "or shall wilfully or knowingly have or be possessed of" to "maker or worker of gold or silver plate, or any or either of them," where those words lastly occur.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
5 Geo. 4. c. 113.	The Slave Trade Act, 1824.	Section ten from "or shall wilfully and fraudulently forge" to "body politic or corporate."
7 Geo. 4. c. 16.	The Chelsea and Kilmainham Hospitals Act, 1826.	Section thirty-eight from "or if any person shall forge" to "any corporation whatsoever."
10 Geo. 4. c. 24.	The Government Annuities Act, 1829.	Section forty-one except in so far as it relates to the offence of personation.
10 Geo. 4. c. 50.	The Crown Lands Act, 1829.	Section one hundred and twenty-four.
2 & 3 Will. 4. c. 16.	The Excise Permit Act, 1832.	Section three. Section four from "shall counterfeit or forge" to "or if any person or persons."
2 & 3 Will. 4. c. 53.	The Army Prize Act, 1832.	Section forty-nine from "or if any person shall forge" to "bodies politic or corporate whatsoever" where those words lastly occur.
2 & 3 Will. 4. c. 59.	The Government Annuities Act, 1832.	Section nineteen except in so far as it relates to the offence of personation.
5 & 6 Will. 4. c. 24.	The Naval Enlistment Act, 1835.	Section three to "for himself or any other person; or"
1 & 2 Vict. c. 94.	The Public Record Office Act, 1838.	Section nineteen from "and every person who" to "Record Office."
2 & 3 Vict. c. 51.	The Pensions Act, 1839.	Section nine.
3 & 4 Vict. c. 92.	The Non-Parochial Registers Act, 1840.	Section eight from "or shall falsely" to "register or record" and the words "or shall forge or counterfeit the seal of the said office."
3 & 4 Vict. c. 111.	The Joint Stock Companies Act, 1840.	In section two the word "forgery" in both places where it occurs.
5 & 6 Vict. c. 35.	The Income Tax Act, 1842.	Section one hundred and eighty-one.
7 & 8 Vict. c. 19.	The Inferior Courts Act, 1844.	Section five from "forge the seal" to "knowing the same to be forged or."

Session and Chapter.	Title or Short Title.	Extent of Repeal.
7 & 8 Vict. c. 22.	The Gold and Silver Wares Act, 1844.	Section two from the beginning of the section to the words "base metal, and"; the words "any such forged or counterfeit die or other instrument as aforesaid or"; the words "the mark of any such forged or counterfeit die or other instrument as aforesaid, or having thereupon any such forged or counterfeit mark or imitation of a mark as aforesaid or"; and the words "forged, counterfeited, imitated, marked."
8 & 9 Vict. c. 113.	The Evidence Act, 1845.	Section four from "if any person" to "knowing the same to be false or counterfeit, or."
11 & 12 Vict. c. 78.	The Crown Cases Act, 1848.	Section six.
11 & 12 Vict. c. 121.	The Liqueur Act, 1848	Section eighteen from "and every person not being so authorised" to "knowing the same to be counterfeited."
14 & 15 Vict. c. 99.	The Evidence Act, 1851.	Section seventeen.
16 & 17 Vict. c. 45.	The Government Annuities Act, 1853.	Section thirty-one except in so far as it relates to the offence of personation.
16 & 17 Vict. c. 107.	The Customs Consolidation Act, 1853.	Section one hundred and sixteen.
17 & 18 Vict. c. 112.	The Literary and Scientific Institutions Act, 1854.	In section twenty-six the words "or shall forge any deed, bond, security for money, receipt, or other instrument."
20 & 21 Vict. c. 77.	The Court of Probate Act, 1857.	Section twenty-eight.
20 & 21 Vict. c. 81.	The Burials Act, 1857	Section fifteen from "or shall falsely make or counterfeit" to "copy thereof" and the words "or shall forge or counterfeit the seal of any burial board."

Session and Chapter.	Title or Short Title.	Extent of Repeal.
24 & 25 Vict. c. 98.	The Forgery Act, 1861.	Section one. Section two. Section four. Sections seven to twenty-seven, both inclusive. Section twenty-eight from "other than such clerk" to "knowing the same to be forged or" where those words lastly occur. Sections twenty-nine to thirty- three, both inclusive. Section thirty-five. Section thirty-six from "or shall forge" to "or of any part thereof"; the words "or shall forge or counterfeit the seal of or belonging to any register office or burial board"; the words "or seal"; and the words "forged or altered" in both places where they occur. Section thirty-seven from "or shall forge" to "as aforesaid," where those words first occur. Sections thirty-eight to forty- one, both inclusive. Sections forty-five and forty-six.
25 & 26 Vict. c. 7.	The India Stocks Transfer Act, 1862.	Section fourteen.
25 & 26 Vict. c. 67.	The Declaration of Title Act, 1862.	Section forty-five.
26 & 27 Vict. c. 7.	The Manufactured To- bacco Act, 1863.	Section seven from "and if any person" to the end of the section.
26 & 27 Vict. c. 73.	The India Stock Certi- ficate Act, 1863.	Section thirteen. Section fifteen.
29 & 30 Vict. c. 25.	The Exchequer Bills and Bonds Act, 1866.	Section fifteen. Section twenty. Section twenty-one. In section twenty-five the words "fifteen, twenty, twenty-one." In section twenty-six the words "twenty, twenty-one."
31 & 32 Vict. c. 37.	The Documentary Evi- dence Act, 1868.	In section four, subsection two.
32 & 33 Vict. c. 49.	The Local Stamps Act, 1869.	In section eight, subsections one, two, three, four, six, seven, and eight.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
32 & 33 Vict. c. 106.	The East India Loan Act, 1869.	Section thirteen.
33 & 34 Vict. c. 58.	The Forgery Act, 1870	Sections three, five, and six.
35 & 36 Vict. c. 33.	The Ballot Act, 1872 -	In section three, subsection one, the words "forges or," and the words "or delivers to the " returning officer any nomination paper knowing the " same to be forged," and subsection two the words " forges, or counterfeits, or,"
35 & 36 Vict. c. 44.	The Court of Chancery Funds Act, 1872.	Section twelve.
36 & 37 Vict. c. 32.	The East India Loan Act, 1873.	Section thirteen.
37 & 38 Vict. c. 3.	The East India Loan Act, 1874.	Section thirteen.
37 & 38 Vict. c. 88.	The Births and Deaths Registration Act, 1874.	Section forty from " and on conviction on indictment " to the end of the section. Section forty-six.
38 & 39 Vict. c. 17.	The Explosives Act, 1875.	Section eighty-one except in so far as it refers to giving, signing, or making use of any licence, certificate, document, or plan false in a material particular.
38 & 39 Vict. c. 63.	The Sale of Food and Drugs Act, 1875.	Section twenty-seven from " any person " to " hard labour."
39 & 40 Vict. c. 36.	The Customs Consolidation Act, 1876.	Section twenty-eight.
40 & 41 Vict. c. 2.	The Treasury Bills Act, 1877.	Section ten.
40 & 41 Vict. c. 51.	The East India Loan Act, 1877.	Section fifteen.
42 & 43 Vict. c. 60.	The East India Loan Act, 1879.	Section fourteen.
43 Vict. c. 10 -	The East India Loan (East Indian Railway Debentures) Act, 1880.	Section twelve.

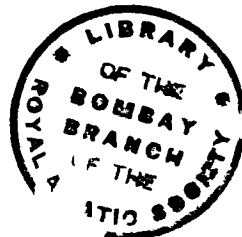
Session and Chapter.	Title or Short Title.	Extent of Repeal.
45 & 46 Vict. c. 50.	The Municipal Corporations Act, 1882.	In section seventy-four the words "forges or " and the words "or delivers to the town clerk " any forged nomination " paper knowing it to be " forged." Section two hundred and thirty-five.
46 & 47 Vict. c. 22.	The Sea Fisheries Act, 1883.	Section seventeen, subsection four, from "and on conviction on indictment" to the end of the section.
46 & 47 Vict. c. 55.	The Customs and Inland Revenue Act, 1883.	In section seventeen the words "and section twenty-five of " the Forgery Act, 1861."
48 & 49 Vict. c. 28.	The East India Loan Act, 1885.	Section twelve.
48 & 49 Vict. c. 49.	The Submarine Telegraph Act, 1885.	In section eight, subsection four, from "and on conviction on indictment" to the end of the section.
51 & 52 Vict. c. 43.	The County Courts Act, 1888.	Section one hundred and eighty from "forge the seal" to "knowing the same to be " forged or."
52 Vict. c. 10.	The Commissioners of Oaths Act, 1889.	Sections eight, nine, and ten.
53 Vict. c. 5. -	The Lunacy Act, 1890	Section one hundred and forty-seven.
54 & 55 Vict. c. 38.	The Stamp Duties Management Act, 1891.	Section thirteen, subsections (1) and (2), and in subsection (8) the words "any forged stamp or" and in subsection (9) the words "any forged die or stamp or." Section fourteen. Section fifteen.
56 & 57 Vict. c. 70.	The East India Loan Act, 1893.	Section seventeen.
61 & 62 Vict. c. 13.	The East India Loan Act, 1898.	In section eight the words "and as to criminal offences."
63 Vict. c. 2. -	The War Loan Act, 1900.	Section four, subsection three.

Session and Chapter.	Title or Short Title.	Extent of Repeal.
1 Edw. 7. c. 25.	The East India Loan (Great Indian Peninsula Railway Debentures) Act, 1901.	In section seven the words "and as to criminal offences."
5 Edw. 7. c. 19.	The East India Loans (Railways) Act, 1905.	Section five so far as it incorporates section seventeen of the East India Loan Act, 1893.
8 Edw. 7. c. 54.	The East India Loans Act, 1908.	Section six so far as it incorporates section seventeen of the East India Loan Act, 1893.
8 Edw. 7. c. 69.	The Companies (Consolidation) Act, 1908.	Section thirty-eight, subsection one, from "(i) with intent to defraud," to "altered or," and subsection two.
10 Edw. 7. c. 5.	The East India Loans (Railways) Act, 1910.	Section four so far as it incorporates section seventeen of the East India Loan Act, 1893.
10 Edw. 7. & 1 Geo. 5. c. 24.	The Licensing (Consolidation) Act, 1910.	Section forty-four, subsection one.

PART II.

ENACTMENTS APPLYING ONLY TO IRELAND.

23 & 24 Geo. 3. c. 23. (Irish Act.)	An Act to regulate the assay of gold and promote the manufacture of gold and silver wares in this Kingdom.	Section twenty-eight from "shall counterfeit or cause to be counterfeited" to "assay offices respectively, or", where those words secondly occur, the words "upon which such counterfeited or imitated mark, stamp, or impression shall have been made as aforesaid, or", and the words "such mark, stamp, or impression to have been counterfeited or imitated as aforesaid or."
20 & 21 Vict. c. 60.	The Irish Bankrupt and Insolvent Act, 1857.	Section three hundred and ninety-seven.
20 & 21 Vict. c. 79.	The Probates and Letters of Administration Act (Ireland), 1857.	Section thirty-three.
34 & 35 Vict. c. 22.	The Lunacy Regulation (Ireland) Act, 1871.	Section fifty.



Session and Chapter.	Title or Short Title.	Extent of Repeal.
34 & 35 Vict. c. 49.	The Matrimonial Causes and Marriage Law (Ireland) Amendment Act, 1871.	Sections fifteen and eighteen.
43 & 44 Vict. c. 13.	The Births and Deaths Registration (Ireland) Act, 1880.	Section thirty, from "and on conviction on indictment" to the end of the section. Section thirty-six.

CHAPTER 28.

An Act to make further and better provision for the care of Feeble-minded and other Mentally Defective Persons and to amend the Lunacy Acts. [15th August 1913.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

PART I.

POWER AND MANNER OF DEALING WITH DEFECTIVES.

Powers of dealing with Defectives.

Definition of defectives.

1. The following classes of persons who are mentally defective shall be deemed to be defectives within the meaning of this Act :—

- (a) Idiots ; that is to say, persons so deeply defective in mind from birth or from an early age as to be unable to guard themselves against common physical dangers ;
- (b) Imbeciles ; that is to say, persons in whose case there exists from birth or from an early age mental defectiveness not amounting to idiocy, yet so pronounced that they are incapable of managing themselves or their affairs, or, in the case of children, of being taught to do so ;
- (c) Feeble-minded persons ; that is to say, persons in whose case there exists from birth or from an early age mental defectiveness not amounting to imbecility, yet so pronounced that they require care, supervision, and control for their own protection or for the protection of others, or, in the case of children, that they by reason of such defectiveness appear to be permanently incapable of receiving proper benefit from the instruction in ordinary schools ;